punishing its exercise as a contempt. The right of petition is protected by the due process clause of the Fourteenth Amendment. And when the petition is addressed to the national government on an issue of national concern, it is also protected by the privileges and immunities clause of the Fourteenth Amendment. *Hague* v. *C. I. O.*, 307 U. S. 496; *United States* v. *Cruikshank*, 92 U. S. 542.

Mr. T. B. Cosgrove, with whom *Messrs. John N. Cramer* and *F. B. Yoakum, Jr.* were on the brief, for petitioners in No. 3.

The clear and present danger doctrine should be applied.

The clear and present danger doctrine requires a weighing of the evidence and a determination "whether the words used are used in such circumstances and are of such a nature as to create a clear and present danger that they will bring about" a substantial interference with the orderly administration of justice. *Schenck* v. *United States*, 249 U. S. 47, 52; *Schaefer* v. *United States*, 251 U. S. 466, 482; *Gitlow* v. *New York*, 268 U. S. 652, 672; *Herndon* v. *Lowry*, 301 U. S. 242, 256; *Thornhill* v. *Alabama*, 310 U. S. 88, 105; *Cantwell* v. *Connecticut*, 310 U. S. 296, 311.

The reasonable tendency test is so vague and indefinite that it "is repugnant to the guarantee of liberty contained in the Fourteenth Amendment." *Herndon* v. *Lowry*, *supra*, 259.

This Court has not subordinated constitutional liberties to governmental functions. The practice has been to reconcile the two. *Whitney* v. *California*, 274 U. S. 357, 374; *Herndon* v. *Lowry*, 301 U. S. 242, 258; *Schneider* v. *State*, 308 U. S. 147, 161, 164; *Thornhill* v. *Alabama*, 310 U. S. 88, 95–96; *Cantwell* v. *Connecticut*, 310 U. S. 296, 304, 307, 308; *Minersville School Dist.* v.